

[TO BE PUBLISHED IN THE GAZETTE OF INDIA, EXTRAORDINARY, PART II, SECTION 3, SUB-SECTION (i)]

GOVERNMENT OF INDIA
MINISTRY OF FINANCE
(DEPARTMENT OF REVENUE)

NOTIFICATION
No. 08/2024-Customs (ADD)

New Delhi, the 16th May, 2024

G.S.R. ...(E).- Whereas, in the matter of “Pentaerythritol” (hereinafter referred to as the subject goods), falling under tariff item 2905 42 90 of the First Schedule of the Customs Tariff Act, 1975 (51 of 1975) (hereinafter referred to as the Customs Tariff Act), originating in, or exported from China PR, Saudi Arabia and Taiwan (hereinafter referred to as the subject countries) and imported into India, the designated authority in its final findings, *vide* notification F. No. 06/04/2023-DGTR, dated the 20th February, 2024, published in the Gazette of India, Extraordinary, Part I, Section 1, dated the 20th February, 2024, has come to the conclusion, *inter alia* that-

- (i) the product under consideration has been exported to India at a price below normal value, thus resulting in dumping;
- (ii) the domestic industry is suffering material injury;
- (iii) the material injury suffered by the domestic industry has been caused by the dumped imports from subject countries,

and has recommended imposition of anti-dumping duty on imports of the subject goods, originating in, or exported from the subject countries and imported into India, in order to remove injury to the domestic industry.

Now, therefore, in exercise of the powers conferred by sub-sections (1) and (5) of section 9A of the Customs Tariff Act read with rules 18 and 20 of the Customs Tariff (Identification, Assessment and Collection of Anti-dumping Duty on Dumped Articles and for Determination of Injury) Rules, 1995, the Central Government, after considering the aforesaid final findings of the designated authority, hereby imposes on the subject goods, the description of which is specified in column (3) of the Table below, falling under the tariff item of the First Schedule to the Customs Tariff Act as specified in the corresponding entry in column (2), originating in the countries as specified in the corresponding entry in column (4), exported from the countries as specified in the corresponding entry in column (5), produced by the producers as specified in the corresponding entry in column (6), and imported into India, an anti-dumping duty at the rate equal to the amount as specified in the corresponding entry in column (7), in the currency as specified in the corresponding entry in column (9) and as per unit of measurement as specified in the corresponding entry in column (8) of the said Table, namely :-

TABLE

S. No.	Tariff item	Description of goods	Country of origin	Country of export	Producer /exporter	Amount	Unit of measurement	Currency
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)
1.	2905 42 90	Pentaerythritol	China PR	Any country including China PR	Any	345.15	MT	USD
2.	2905 42 90	Pentaerythritol	Any country other	China PR	Any	345.15	MT	USD

			than China PR					
3.	2905 42 90	Pentaerythritol	Saudi Arabia	Any country including Saudi Arabia	Any	300.15	MT	USD
4.	2905 42 90	Pentaerythritol	Any country other than Saudi Arabia	Saudi Arabia	Any	300.15	MT	USD
5.	2905 42 90	Pentaerythritol	Taiwan	Any country including Taiwan	Any	499.01	MT	USD
6.	2905 42 90	Pentaerythritol	Any country other than Taiwan	Taiwan	Any	499.01	MT	USD

2. The anti-dumping duty imposed under this notification shall be levied for a period of five years (unless revoked, superseded or amended earlier) from the date of publication of this notification in the Official Gazette and shall be payable in Indian currency.

Explanation.- For the purposes of this notification, rate of exchange applicable for the purpose of calculation of such anti-dumping duty shall be the rate which is specified in the notification of the Government of India, in the Ministry of Finance (Department of Revenue), issued from time to time, in exercise of the powers conferred by section 14 of the Customs Act, 1962 (52 of 1962), and the relevant date for the determination of the rate of exchange shall be the date of presentation of the bill of entry under section 46 of the said Customs Act.

[F. No. CBIC-190354/56/2024-TRU Section-CBEC]

(Nitish Karnatak)
Under Secretary to the Government of India